

THIRD AMENDMENT TO LEASE

THIS THIRD AMENDMENT TO LEASE (“**Third Amendment**”) is made and entered into this 5th day of March, 2024, by and between **AP CHANTILLY MEADOWS LLC**, a limited liability company organized and existing under the commonwealth of Virginia (“**Landlord**”) and **THE RED GATE GROUP LTD.**, a Commonwealth of Virginia Corporation (“**Tenant**”)

WITNESSETH:

WHEREAS, pursuant to a certain Lease, dated as of March 27, 2017 (the “**Original Lease**”), as thereafter amended by a First Amendment to Lease dated April 10, 2018 (“**First Amendment**”) and a Second Amendment to Lease dated January 31, 2019 (“**Second Amendment**”) by and between Landlord and Tenant (collectively the “**Amended Lease**”), Landlord leases to Tenant certain premises, situated on the First (1st) Floor and known as Suites 135W and 135E, (the “**Premises**”) of the Building known as and located at 4795 Meadow Wood Lane, Chantilly, Virginia 20151 (the “**Building**”). The Original Lease, First Amendment and Second Amendment, as amended by this Third Amendment, shall be collectively referred to as the “**Lease**”; and

WHEREAS, the Amended Lease Term expires on February 28, 2026 (“**Current Lease Expiration Date**”); and

WHEREAS, Tenant desires to extend the term of the Amended Lease and to reduce the rentable area of the Premises effective as of August 1, 2024; and

WHEREAS, the changes and modifications, as hereafter set forth, shall be binding as of the date hereof, and effective as of August 1, 2024 (hereafter, known as the “**First Renewal Term Commencement Date**”), unless otherwise expressly provided for herein.

NOW, THEREFORE, in consideration of the promises and mutual covenants set forth herein, the parties, intending to be legally bound, hereby agree as follows:

1. **CAPITALIZED TERMS.** All capitalized terms used in this Third Amendment without definition shall have the definitions ascribed to such terms in the Amended Lease.
2. **PREMISES, BUILDING AND LAND.**
 - A. **Reduction of Premises.** Commencing as of August 1, 2024 (the “**First Renewal Term Commencement Date**”), the rentable square footage of the Premises shall be reduced by the entirety of Suite 135E, containing approximately 2,649 square feet of rentable area, situated on the first (1st) floor of the Building shown as “Red Gate Give Back Space” in the gray shaded area on **Exhibit A - PLAN OF SURRENDERED PREMISES**, attached hereto and made a part hereof (the “**Surrendered Premises**”), and the annual Basic Rent, Tenant’s Proportionate Share, and any other provisions of the Lease affected by rentable square footage, shall be amended and calculated based upon the rentable area of the First Term Renewal Premises with the Tenant’s Proportionate Share now equal to 2.39%. Landlord and Tenant hereby acknowledge that the rentable area of the Surrendered

Premises and the First Term Renewal Premises has been determined and no further verification will be required and notwithstanding anything herein to the contrary, Landlord shall have no further obligation to Tenant with respect to the Surrendered Premises.

- B. **Surrender of Surrendered Premises.** Landlord and Tenant hereby agree that Tenant shall vacate, quit and surrender to Landlord the Surrendered Premises, in the condition required pursuant to the terms of the Amended Lease, or as otherwise provided for by this Third Amendment, on 1 June 2024 (the “**Surrender Date**”), with all furniture, fixtures and equipment (the “**FF&E**”) to remain in the Surrendered Premises. If requested by Landlord, Tenant shall execute a bill of sale, transferring its ownership interest in the FF&E to the Landlord. In the event Tenant fails to vacate the Surrendered Premises by the Surrender Date, Tenant shall be deemed a tenant-at-sufferance and will be subject to the Holdover provisions of the Original Lease.
 - C. **Security Deposit.** Upon the date of Surrendered Premise termination, Landlord will release to Tenant the security deposit in the amount of \$4,415.00.
 - D. **Premises.** Following the Surrender Date, the Premises shall comprise approximately 3,500 square feet of rentable area, situated on the First (1st) Floor of the Building, known as Suite 135W (hereafter referred to as the “**Premises**” or the “**First Term Renewal Premises**” as the context requires) as shown on the **Exhibit B – Plan of Premises**, and attached hereto.
- 3. **LEASE TERM.** Effective as of the date hereof, the Lease Term shall be extended from March 1, 2026, through February 28, 2029, (the “**Lease Expiration Date**”), (hereafter such extension term referred to as the “**First Renewal Term**”), unless sooner terminated, extended or renewed in accordance with the terms of the Lease.
 - 4. **IMPROVEMENTS.** Tenant accepts the First Term Renewal Premises in its “as is” condition, subject to Landlord’s ongoing obligations under the Lease.
 - 5. **RENT.** Commencing on the First Renewal Term Commencement Date, Basic Rent for the First Renewal Term shall be payable pursuant to **Exhibit C – BASIC RENT SCHEDULE** attached to and made a part of this Third Amendment, which shows an extension rental rate of \$26.00/SF. Basic Rent shall otherwise be due and payable in accordance with the terms of the Amended Lease.
 - 6. **LEASING COMMISSION.** Landlord recognizes Fortress Realty Partners as Landlord’s exclusive broker for this transaction, and Tenant represents and warrants it has not employed any broker in carrying on the negotiations relative to this Lease or otherwise in connection with this Lease. Landlord agrees to pay Fortress Realty Partners a leasing commissions pursuant to the terms and conditions of a separate agreement. Landlord and Tenant shall each indemnify and hold the other harmless from and against any claims for brokerage or other commission arising from such party having employed a broker (other than Fortress Realty Partners) contrary to its representation in this Section.
 - 7. **BINDING EFFECT; ENTIRE AGREEMENT.** The terms of this Third Amendment are binding upon and inure to the benefit of the parties hereto and their respective representatives, successors and permitted assigns. This Third Amendment sets forth the entire agreement between the parties with respect to the matters set forth herein. There have been no additional oral or written representations or agreements.

8. **RATIFICATION.** Except as expressly amended herein, all provisions, covenants and conditions of the Lease are hereby ratified, confirmed and incorporated herein in their entirety by this reference.
9. **FULL FORCE AND EFFECT.** The Lease shall remain in full force and effect and the terms of this Third Amendment shall control over any conflicts between the terms of the Lease and the terms of this Third Amendment.
10. **AUTHORITY.** Each person executing this Third Amendment on behalf of Tenant and Landlord, respectively, hereby covenant, warrant and represent that the Tenant and Landlord named herein are duly qualified to do business in the state in which the Building is located; that Tenant and Landlord have full right and authority to enter into this Third Amendment; that each person signing on behalf of Tenant and Landlord respectively are duly authorized to do so; and that no other signatures or approvals are necessary. Upon either party's written request, Tenant or Landlord shall provide to the requesting party reasonably satisfactory evidence confirming the foregoing covenants, warranties and representations.
11. **COUNTERPARTS.** This Third Amendment may be executed in any number of counterparts, each of which shall be deemed to be an original, and all of such counterparts shall constitute one agreement.
12. **ELECTRONIC EXECUTION.** If this Third Amendment is electronically signed, Landlord and Tenant further acknowledge and agree that notwithstanding any law or presumption to the contrary, it is the express intention of Landlord and Tenant that an electronic or telefaxed signature of either party to this Third Amendment shall be deemed valid and binding as if the same were an original ink signature of such party on this Third Amendment, and shall be admissible in any proceeding by either party against the other as if the same were an original ink signature on this Third Amendment.
13. **EXHIBITS.** The following exhibits are attached hereto and are incorporated herein as part of the Lease.
 - Exhibit A - Plan of Surrendered Premises
 - Exhibit B - Plan of Premises
 - Exhibit C - Basic Rent Schedule

[Signatures on Following Page]

IN WITNESS WHEREOF, Landlord and Tenant have executed this Third Amendment as of the day and year first above written.

LANDLORD:

AP CHANTILLY MEADOWS LLC
a Virginia limited liability company

By: _____

Name: Charlie Betancourt

Title: Chief Operating Officer

TENANT:

THE RED GATE GROUP LTD.,
a Commonwealth of Virginia Corporation

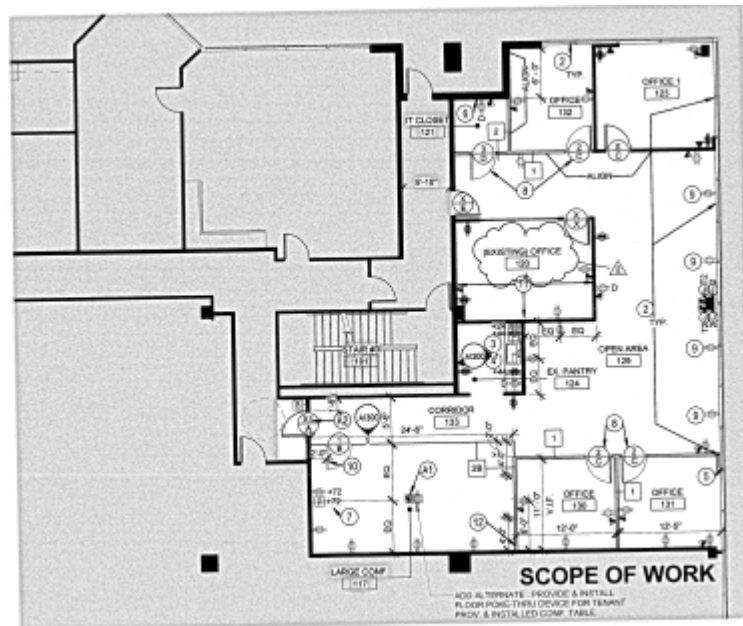
By: _____

Name: John Noh

Title: CFO

EXHIBIT A

PLAN OF SURRENDERED PREMISES (Suite 135 East)



PLAN OF PREMISES (Suite 135 West)

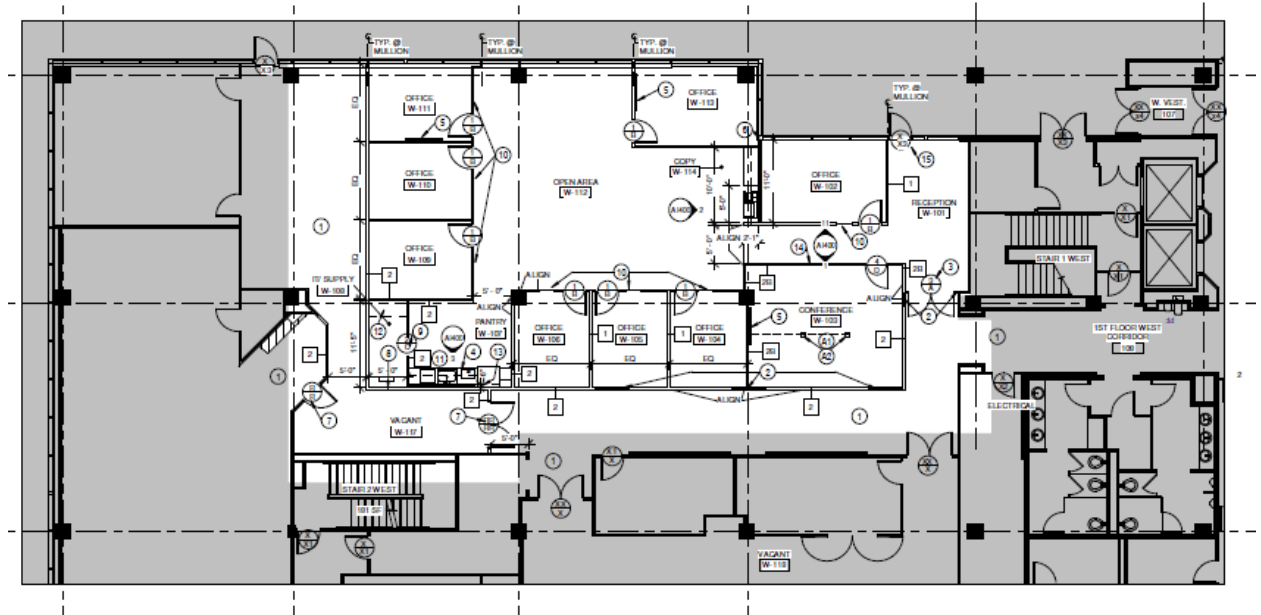


EXHIBIT C

BASIC RENT SCHEDULE

Period	Extended Premises			Surrendered Premises		
	RSF	Rental Rate	Monthly Rent	RSF	Rental Rate	Monthly Rent
2/1/24 - 7/31/24	3,500	\$26.48	\$7,722.54	2,649	\$22.91	\$5,056.38
8/1/24 - 8/31/24	3,500	\$27.21	\$7,934.91	2,649	\$23.54	\$5,195.43
9/1/24 - 7/31/25	3,500	\$27.21	\$7,934.91			
8/1/25 - 2/28/26	3,500	\$27.95	\$8,153.12			
3/1/26 - 7/31/27	3,500	\$26.00	\$7,583.33			
8/1/27 - 7/31/28	3,500	\$26.72	\$7,791.88			
8/1/27 - 2/28/29	3,500	\$27.45	\$8,006.15			